

Smt. Deepika W/O Lokesh Pareek D/O ... vs Lokesh Pareek S/O Malaram Pareek on 10 December, 2021

Author: Sudesh Bansal

Bench: Sudesh Bansal

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 13/2021

Smt. Deepika W/o Lokesh Pareek D/o Ramesh Chand Pareek,
Aged About 32 Years, R/o Khohri, Th. Bansur, Dist. Alwar At
Present R/o Pareek Chouk Gudhagorji Th. - Udaipurwati, Dist.
Jhunjhunu.

----Petitioner

Versus

Lokesh Pareek S/o Malaram Pareek, R/o Khohri, Th. Bansur, Dist.
Alwar Mob. - 9022373378, 8588865614

----Respondent

For Petitioner(s) : Mr. Surya Prakash
For Respondent(s) : Mr. Nav Ratan Singh

HON'BLE MR. JUSTICE SUDESH BANSAL

Order

10/12/2021

This transfer application has been filed by the applicant-wife, invoking the powers under Section 24 of CPC, seeking transfer of the application filed by the respondent-husband under Section 9 of Hindu Marriage Act, 1955, from the Court of Additional District & Sessions Judge, Bansur, District Alwar to the Family Court, Jhunjhunu.

It appears from the record that the parties entered into marriage on 19.02.2011 at Gudhagorji, situated within the periphery of district Jhunjhunu. The respondent-husband has filed an application under Section 9 of Hindu Marriage Act, 1955 on 25.11.2019 before the Additional District Judge, Bansur, District Alwar. The title page of this application reveals that at the time of (2 of 3) [CTA-13/2021] filing of this application, the applicant-wife was residing at Gudhagorji, Tehsil Udaipurwati, District Jhunjhunu.

It also appears from the record that the applicant-wife has filed an application under Section 125 of Cr.P.C. for maintenance before the Court of Judicial Magistrate, Udaipurwati, Jhunjhunu, another complaint under Section 12 of the Protection of Women from Domestic Violence Act, 2005 before the Court of Judicial Magistrate, Udaipurwati, Jhunjhunu and criminal FIR No. 06/2020 registered at Police Station Gudhagorji, Tehsil Udaipurwati, Jhunjhunu which are said to be pending there.

After issuance of notices on this transfer application, the respondent-husband has appeared and filed reply to the transfer petition objecting the transfer of his application under Section 9 of Hindu Marriage Act, 1955, seeking restitution of conjugal rights and to bring back his wife to the matrimonial home.

Looking to the nature of application filed by the respondent- husband particularly for restitution of conjugal rights, this Court is of opinion that the same may be transferred at the place where wife is residing at least at the time of presentation of this application. Moreover, the Family Court, Jhunjhunu is also having jurisdiction to entertain the said application since the marriage between both the parties arrived at Village Gudhagorji, Tehsil Udaipurwati, District Jhunjhunu.

Thus, this transfer application is allowed. The application No. 203/2019 titled as Lokesh v. Deepika, at present pending before the Court of Additional District & Sessions Judge, Bansur, District Alwar is ordered to be transferred from this Court to the Family Court, Jhunjhunu. Both the parties are directed to appear before the Family Court, Jhunjhunu on (3 of 3) [CTA-13/2021] 05.02.2022. In the meanwhile, the process of transfer of this file from the Court of Additional District & Sessions Judge, Bansur, District Alwar to Family Court, District Jhunjhunu shall be completed.

The transfer application accordingly stands disposed of. Interim stay application and all other pending applications stand disposed of.

(SUDESH BANSAL),J SAHIL SONI /44 Powered by TCPDF (www.tcpdf.org)